

Workspace 'Running Notes' in 'CPC + LT Act'

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3. CPC + LIMITATION ACT (CIVIL PROCEDURE CODE)

6/8/26

i) Began with a revision of

ii) Began with the definition of a decree 5.2(2).

iii) Stated that in civil law, judges state the rights of the parties but conclusively do so with the decree.

iv) Began similarly with "suit" → not absolute definition → *Hawong Gupta v. official Liquidator of Delmadun-Nunawie Electric Trading Ctd.*

civil proceedings instituted by the presentation of a plaint.

v) Stated that an institution of a suit can be when the plaint is presented.

vi) Also, "deemed suits" → any civil proceedings instituted by an application.

legal fiction

→ It is not a suit in the actual sense but only remedy is being sought & rights are not being decided.

vii) Elements of a suit → Cause of Action

+
Subject matter
+
Matter in controversy
+
Title
+
Relief
+
Proper parties

viii) Emphasised that the entire civil proceedings revolve around the above stated elements.

ix) Hinted that identification of facts whether falling into civil/criminal & which one to claim, may come.

x) Cause of Action → Existence of legal right + violation of such legal right.

xi) Subject Matter → Property or the right that is in issue/controversy.

xii) Matter in issue/controversy → Every fact that needs to be proved to prove the Cause of Action [CoA].

xiii) Stated that Title is one's legal capacity, acquired through legal processes.

xiv) Took approximately 15 mins for matter in controversy/issue & Title.

xv) Stated that Relief is anything that is claimed as a remedy from the Court, with the expectation that it will be granted.

7/8/26

i) Began with definition of decree, with layman explanation first.

ii) Decree is what gives a functional approach towards the judgment.

iii) Judgement judges & states who won & why. Decree is "conclusive determination of rights & liabilities". She is constantly

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emphasizing on the term conclusive.

iv) s.2(2) + shown Appendix D No.1 to state that the term "formal expression" denotes such format.

v) "formal expression" of what? → of an adjudication → what is adjudication? → It is judicial determination → what makes it a determination & not just an adjudication is because determination is a conclusive.

vi) Stated explicitly that adjudication is the judicial determination of the matter in dispute.

vii) "Any dispute that is administrative in nature or dismissal for want of appearance is not a decree because there is no judicial dealing of the matter."

viii) Panchayats & District Magistrates does not fall in the class of adjudication as not judicial bodies.

ix) Put forth the axiom that adjudication = judicial determination.

13/8/26

i) Began with a revision of the definition of decree.

ii) Established the ingredients of decree.

a) Adjudicative must be there.

b) Determinative with respect to some/all matter of the controversy.

c) Determinative of conclusive nature.

d) Formal expression of adjudication.

iii) The facts needed to be proved, to prove the CofA, are the matters in controversy.

iv) Absolutely loves examples of property matters & matrimonial matters.

v) I would prefer more examples of property because I've not seen the matrimonial matters.

vi) "Conclusive nature" → That Court no longer has any issue/rights that are needed to be determined.

vii) The above vi) does not mean that the Court becomes "functus officio" — as execution & other proceedings may be left.

viii) She wants us to apply the ingredients in the example (like prokhatas) in order to determine the status of matter.

ix) She is absolutely ready to give maximum marks if the answer has a reasoning that is absolutely correct, regardless of brevity. She does not need long answer.

x) "Indigent" person — no money to litigate.

↳ not a decree, but an order.

xi) Imp Test → whether decision is final & conclusive in essence & substance for the rights & liabilities in question.

xii) Preliminary decree determines conclusively part of the whole of rights & liabilities. Some are still left.

14/8/26

i) Began with a revision of 13/8/26.

ii) Moolchand v. Director → can there be more than one Prelim decree?

iii) Shankar v. Chandrakant → defined Prelim decree.

iv) s.97 → stated to be extremely important.

97. Appeal from final decree where no appeal from preliminary decree.—Where any party aggrieved by a preliminary decree passed after the commencement of this Code does not appeal from such decree, he shall be precluded from disputing its correctness in any appeal which may be preferred from the final decree.

—CPC 1908, part, s.97

v) Stated that the basic difference between (Prelim & Final) Decree → is whether anything left to be determined?

if yes then Prelim

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vii) Decree can be partly Prelim & partly Final — Eg → All substantive rights have been determined but some procedural are left.

if no, then Prelim.
else, then Prelim.

viii) Final decree does not extinguish the Prelim decree. Eg of types of suit → Mean Profit suits, Partition suit.

viii) Highlighted that compromise decree will still be a decree, as the Court will still look at the government & decide its validity & thus will still be a decree.

ix) Began with "What are not decrees?"

x) Eg of above → Dismissal for Default, Appellate orders.

xi) Suddenly began with "Decreed Decree".
→ Becomes any decree is appellate but not every order.
→ restitution [s. 144], rejection of plaint.

xii) Suddenly began with "order" [s. 2(14)].

17/8/26

i) Began with revision of Prelim Decree & Final Decrees.

ii) Revised what is not a Decree.

iii) Revised "Decreed Decree".

iv) Stated that any consequence of Decree is also with Decreed Decree.

v) Began with Order VI Rule XI.

vi) Rejection of suit is a Decreed Decree.

vii) Began with Restitution → s. 144

viii) Used the word "Restoration" for replacing the meaning of Restitution.

ix) Elements of Restitution were stated → As per section.

x) The Court which passed the original Decree will also receive the application for restitution, & not the Appellate Court.

xi) Actus Curiae Neminem Gravabit → Act of Court shall harm no one.

xii) s. 144 (1) — stated to be very very important.

xiii) State of Gujarat v. Essar Oil Limited 2012 — Duty of Court to restore position & undo mistakes.

xiv) Suddenly revised "Declaratory suits".

20/8/26

i) Began with a revision of Decree, restitution & which orders are not Decrees at all.

ii) Went through the elements of restitution.

iii) Explicitly began with the elements of restitution — a) Existence of a Decree or an order.

b) Some benefit to have been transferred as a consequence of the Decree or order.

c) The original Decree or order had to have been valid or enforceable.

iv) Constantly emphasising on restitution. I suspect that this will come in the exam.

v) Separate suit filed to set aside a Decree — applicable only in specific cases. For eg → composite Decree.

vi) Stated that the foundation of restitution is "Unjust enrichment".

vii) Emphasised that "Justice, Equity, good Conscience" governs the restoration of the benefit that was transferred due to the Decree or order.

viii) Stated that "Restitution in specie (in entirety)" is not always possible.

ix) Restitution of Copyright Rights is not a part of Restitution, & also for Restitution — some tangible benefit has to be the subject.

x) Bhatnagar Sharma v. Rajasthan 2019 SC — s. 144 (Restitution) does not apply where there is no removal/variation of Decree or order.

xi) Bhikshulal Duggal v. L.R. v. Shambhuji Gunde 2024 SC — person who purchases property from Decree holder having full knowledge of pending appeal is not a bona fide purchaser. Restitution would be denied.

xii) Began with Mesne profits — s. 2(12).

xiii) Stated the ingredients for Mesne profits — a) profits which the person in wrongful possession of a property.

b) actually received/might have received with ordinary diligence.

c) together with interest on such profits.

d) deductible — profits due to improvements made by the person in wrongful possession.

25/8/26

i) Began with a testing through an example — whether the elements of restitution are being fulfilled or not.

ii) She's constantly emphasising on Restitution.

iii) Began with Mesne Profits.

iv) Stated that mesne profits is only with regard to immovable property.

v) The concept is to prevent unjust enrichment — but stated that this is the theoretical part of the topic.

vi) Stated that for the computation of the mesne profits, the actual value that was earned while having the unlawful possession would fall under the topic — not the hypothetical profits that "may" have happened if the lawful owner continued to have lawful possession.

vii) Additionally, for the calculation of the mesne profits, there is also consideration with regard to what the unlawful possessor "might" have gained with reasonable and ordinary prudence.

viii) Began with the distinction between improvements — any value invested which actually made the value of the property appreciate in its value. If the value does not actually appreciate, then the improvement won't be included for the calculation at all — AND value invested which does not actually appreciate the property's value.

ix) "Actual cost of the improvement will not be deducted, but the proportional value of the investment with respect to the value of the appreciation has to be deducted, if at all, from the mesne profits."

x) If, while the entity having unlawful possession did something to the property that deteriorated its value, then that is a separate cause of action and not of mesne profits.

xi) Stated the 4 principles of Mesne profits — a) No profit by person in wrongful possession. b) Restoration of status before dispossession of Decree holder. c) What use to which Decree holder would have put property if he himself was in possession. d) Possession through another — sufficient to create liability (Tenant to Subtenant).

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26/8/26

i) Began with a revision of the Chronology of a suit flowchart given previously.
ii) **Lucy Kochwareed v. P Mariappa Gonder** — SC laid down 2 specific conclusions with respect to Mesne profits.
iii) With regard to above ii) — a) If there are more than one person in wrongful possession, all of them will be liable jointly and severally. b) Example — tenant and subtenant both liable to pay mesne profits, if tenant was in wrongful possession and created sub tenancy during such time.
iv) s. 2(14) is Order (as stated in the past notes) — Stated it again.
v) s. 2(9) — definition of "judgement" as per the Act.
vi) Stated that, if a particular order is creating a procedural liability, it will generally be appealable.
vii) Stated the distinction between order and decree again.
viii) Stated that the grounds on which a decree is formally passed, those grounds specifically as a statement, is the judgement.
ix) **Balraj Taneja v. Sunil Madhan ; Medhora v. Medhora** — for above viii) — essentials.
x) Started the distinction between "judgement" and "decree".
xi) Stated that the most important essential for a judgement — "The reasons for the decision" — Professor's own words, inspired by **Balraj Taneja case**. Also stated for **Medhora case**, "judgement is a justification for the decree passed."
xii) Began with s.2(3) and s.2(10).
xiii) Began with "Res Judicata and Res Sub judice" — stated that this is very very important.
xiv) Began with Res subjudice first — is not about the institution of the suit, but about the proceeding of the subsequent suit, that "proceeding" will be stayed if it satisfies the elements of Res subjudice.
xv) Stated that the primary necessity for Res subjudice — pending suits parallel to each other, there is a possibility of contrarian decree. Therefore, to avoid this situation from being established — Res subjudice is existent.
xvi) Also stated, that institution of the second suit is not barred, but the proceeding itself is barred.

27/8/26

i) Began with revision of Res subjudice.
ii) Stated that certain elements of Res subjudice and Res judicata are same.
iii) Stated that "Same matter in issue" are matters that are substantially and directly matters in issue.
iv) Stated the elements of Res subjudice — a) There must be 2 suits. b) Both suits are between same parties or their representatives. c) Court where previous suit instituted must have jurisdiction to grant relief.
v) Stated that, if for any reason, the second suit gets a decree passed, the decree would not be void.
vi) Stated if the right derived is from one person (for example — sub-tenant and tenant) — the second person (sub-tenant) would be considered as the SAME party as the tenant — therefore, it does not matter if the persons are different, if the interest and the legal right is derived, the Party is one and the same.
vii) Res subjudice would also apply if the judgement is reserved.
viii) If any suit is pending in a Foreign Court, Res subjudice won't apply if the second suit is filed in India.
ix) Stated that if matter in issue is different — Res subjudice won't apply.
x) Emphasised again on Cause of Action — violation of the legal right ; Matter in Issue — the distinct facts needed to be proven to prove the Cause of Action.

31/8/26

i) Stated that the first Class Test is going to be held on September 15.
ii) Syllabus is everything covered till the class just before the Test day.
iii) The ceiling limit for the marks of the exam is 20.
iv) Began with a revision of Res subjudice and the class of 27/8/26.
v) Suddenly posed the question — "What is the difference between Matter in issue and Fact in issue?"
vi) Emphasised the process of "indigent" and its effect on the suit that has been filed.
vii) Stated the this case is very important — **National Institute of MH and NS v. C. Parmeshwara (2005) SC** — on matters that are "substantially the same".
viii) Stated that the relief may be different in different suits, however matter in issue may be same. If so, then Res subjudice would apply.
ix) Heavily emphasising on the concept of "substantially the same" with respect to Res subjudice.
x) Stated that "merely adding another party against whom no separate or substantial issue is raised would not make Section 10 inapplicable."
xi) Extremely important case **Manohar Lal v. Seth Hiralal** — Exceptions to Res subjudice — a) Interim orders b) Summary suits — Trial begins after Court grants leave c) Suit pending in foreign court.
xii) Stated that Res subjudice is not an appealable order — can only allow for a revision application.
xiii) **Meghalaya v. Union of India** — Every single principle of Res subjudice was reiterated in this case.
xiv) Began with Res Judicata — Section 11.
xv) I have noticed she's always prepared with problems that "seem" to be pointing to one answer, yet it's in reality not. To be noted for the analytical questions that would come in the exam.

1/9/26

i) Continued with Res judicata.
ii) Stated to be a very important case for conceptual clarity — **Satyadhyhan Ghoshal v. Deorajin Debi**.
iii) Stated to be extremely important reasons for the existence of the Res judicata — a) Nemo Debit Bis Vexari Pro Una Et Eadem Cause — No man should be vexed twice for the same cause b) Interest republicae Ut Sit Finis Litium — It is in the interest of the State that litigation should come to an end c) Res Judicata Pro Veritate Occipiter — A judicial decision must be accepted as correct — d) connects to Stare Decisis.
iv) Started distinguishing between Res judicata and Stare Decisis — stated that "Res judicata applies to the particular same parties. It is not general in nature. Stare decisis is for all Courts and is general — this is the conceptual distinction."
v) **Daryao v. State of U.P** — If not for this rule, there would be no end to litigation. Stated that it is also an aspect of the rule of law, that decisions once made must be followed and continued.
vi) The concept of "vexing" is not of being the petitioner, but rather of the procedure itself being of undue delay and the litigative process. Both parties would be victims of the process then.
vii) Stated the elements of Res judicata — a) There must be 2 suits in existence of which one suit must have been decided — former suit — the suit which has been decided prior in time, and the other being the currently initiated suit. Rest of the elements to be continued in later classes.

3/9/26

i) Began with Explanation 4 of Section 11 — Constructive Res judicata — extremely important — Since the object of res judicata is not pending litigation, if there was a ground, which could have been raised in the prior suit, which might or should have been raised in the same suit, if raised in another, the "another" suit would be barred by res judicata.
ii) Extremely important case — **UP v. Nawab Hussain** — Professor quoted "Res judicata is not confined to issues the Court is actually asked to decide, it covers all issues or facts which are so clearly part of the subject matter of litigation and could have been raised earlier that it would be an abuse of process of the Court to allow a new proceeding in respect of that."
iii) Stated in respect to above i) and ii) — "Applies to grounds, not claims."
iv) I am noticing that Professor is giving examples, where we would have to answer if, Res judicata or Res subjudice, would apply, or if both would not apply. She's effectively combining both, and turning them into an analytical question. She has been doing this throughout her period of classes till now, and have no intention of changing it. She's making sure that we understand the subtle technicalities, in order to know which procedure would apply — since these format of questions would be coming in the exam worth a substantial amount of marks.

DATE — 7/9/26

i) Began with putting a question to the class, as an act of revision of the past classes, on the topic of Constructive Res judicata.
ii) Continuing with the elements of Res judicata — b) Matter in issue — must be directly and substantially the same, such that if such issue is admitted, it would change the former suit, to apply Res judicata. c) Same parties must be, to apply Res judicata.
iii) Stated that where there is a pure question of law untreated to facts which gives rise to rights, for example — jurisdiction; validity of a provision — Res judicata will not apply.
iv) Stated that **Fielding v. Metropolitan Police** — Res judicata will not apply.

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iv) Stated that Finding on matter not in issue — Res judicata will not apply.
v) Stated the distinction between "Might" and "Ought".
vi) For above mentioned element c) — Stated about representative suit — Where a litigating party is litigating bona fide for more than one person, for a common interest, not necessary that the Cause of Action be same, the decision that is given would bind not just the litigating party but also the rest of the persons. Commonality of interest and the first suit being filed as a representative suit, the interest mentioned must be made explicit, are highly important elements of such suit. Other elements are — Not named parties must be interest in such right; and Order 1 Rule 8 condition if filed suit under such. The Test is that — "Identity of title and not subject matter."
vii) Began with Co-defendants as another part of element c).
viii) **Ishwer Singh v. Sarwan Singh** — stated to be very important case for Co-defendants.

DATE — 8/9/26

i) Stated that Class Test on 15th September will follow the format of MCQ's and Short Answer questions — covering everything covered till now, especially those done in the week preceding 15th not excluding the class on the day before 15th.
ii) Explanation 8 of Section 11 is important.
iii) Stated the final element of Res judicata — Heard and Finally decided.
iv) Res judicata is applied not to decree, but to the Issues.
v) **Pandurang Ramchandra v. Shantibai Ramchandra** — Final decision on which, the Court must have exercised its judicial mind on Merits.
vi) **Yedaiah v. Telangana (2023)** — The concept of Fundamental Determination was introduced in this case. No collateral or incidental observations would be liable for application of Res judicata. The Test — The Finding is so vital that without it, the matter in issue cannot be decided, then Res judicata would apply to a finding/observation. Professor's favourite case and the one she considers to be most important for Res judicata.
vii) Began with the topic of Jurisdiction — Subject Matter Jurisdiction — Section 9; Pecuniary Jurisdiction; Territorial Jurisdiction.
viii) Decree passed contravening Territorial Jurisdiction is not a nullity, and can be cured.
ix) Began with Territorial Jurisdiction — Section 16 to Section 21.
x) Stated that any Tort committed against an Immovable property is covered under Section 16(e).

DATE — 9/9/26

i) Continued with Territorial jurisdiction from the previous class.
ii) Stated — It is at the option of the plaintiff alone to decide which Court will receive the plaint.
iii) Stated about Dominus Litus with respect to above.
iv) Began with Section 17 and Section 18.
v) Began with Section 20.
vi) Stated that Section 20, with its explanation, is extremely important.
vii) Chronologically revisited from Section 16, 17, 18, 19, 20.
viii) Putting forth questions to the class, that involves the above mentioned examples — For eg, Dispute between A v. B. A lives in Nagpur, B is a company located in Kolkata. Dispute with respect to delivery of product. Sub-office located in Mumbai. Where can the suit be filed? — She specifically has hinted that these kinds of questions will come in the tests and the exam. She's deliberately making such examples harder, so that the answer looks like it's going to be something, but then it turns out to be the other thing. She's constantly telling us to understand the above mentioned sections, and apply these sections in order to answer the above mentioned question types, which require these sections to answer them correctly.
ix) **Jabalpur Cable Network Pvt. Ltd. v. ESPN (1999)** — Contract for distribution and broadcast between the parties — The jurisdiction where the loss is most perceived, Cause of Action in Part lies there as well.
x) Stated part of Theory of Jurisdiction — Consent in a contract, can never take away the right of jurisdiction of a party. Effectively, the law will supersede the contract. Furthermore, where 2 or more places possess jurisdiction, then the parties can agree to litigate in 1 jurisdiction only — **Deaar Antole v. RS.**
xi) Stated that "very tough questions will come in the test and exam, on jurisdiction."

DATE — 10/9/26

i) Continuing with jurisdiction.
ii) Stated the Elements of jurisdiction — a) Power to try the case. b) Power to grant the relief requested for, in that case.
iii) **Official Trustee v. Sachindra Nath** — The Court must have jurisdiction to give order that is sought.
iv) Put question to the class — "What is the meaning of Dominus Litus, and to whom does it apply?; Why is only the plaintiff falling under the class of Dominus Litus?"
v) For Dominus Litus — stated case — **Abdulla Bin Ali v. Galappa** — Allegations of Plaintiff decide jurisdiction. Merely because the defendant was claiming wrong jurisdiction, does not mean that jurisdiction will be wrong, unless of course it is actually wrong with respect to the Allegations of the Plaintiff.
vi) Section 3, 6, 15, 21 — Read together for pecuniary jurisdiction.
vii) Stated that for deciding pecuniary jurisdiction, the valuation of the subject matter will be considered.
viii) Also stated for above vii), that does not mean that the Court cannot decide to award more damages if it thinks it fit to do so.
ix) Stated that — "Rote memorisation will be an absolute way to fail both the upcoming test and the mid sems. Professor completely focuses on analytical questions so to test whether we can actually apply the correct legal reasoning."
x) Stated that Section 21, in the past, has always come in the tests and the exam.
xi) Stated that, if pecuniary jurisdiction is been objected to, it must be raised as immediately as possible, and definitely must be objected before the framing of the issues or the settlement of issues. If this is not followed, reasons falling under 2 classes would be allowed — a) Failure of justice b) Caused serious prejudice to either party.
xii) Began with Subject Matter jurisdiction — stated to be the most important.
xiii) Began with Section 9.
xiv) Stated — Suit of Civil Nature.

DATE — 11/9/26

i) Began with Continuing with Section 9.
ii) **PMA Metropolitan v. Moram Mar Mothornia (1995)** — Important case.
iii) Right to particular office, suit is of civil nature even though the primary question is of religious rites/ceremonies — **Bhuri Nath v. J&K.**
iv) Putting forth questions of example for determining if the suit is of civil nature or not — for eg — matters of foreign policy?; Govt signs bilateral treaty with Country A, sharing river water. Govt decides to create barrages. Group of farmers living downstream file a civil suit seeking declaration of treaty as unconstitutional and injunction seeking govt. not to direct water? Is this a suit of civil nature or not?
v) Elements of a suit of Civil Nature — a) Pertaining to private rights and private remedies b) Opposed to criminal, political and other rights.
vi) Discussed about the distinction between Express and Implied Bar, with reference to the phrase used in Section 9.
vii) Stated about **Dhula Bai v. State of Madhya Pradesh** — stated about this with reference to above vi).

DATE — 14/9/26

i) Began by stating that the test would be tough, genuinely tough — 20 marks test — Format would be — 12 MCQs and 8 Short Answer.
ii) Began with putting forth question — "The suit is A v. B — both A and B are uni students like us, the question is they are claiming that they have the right to contest in uni elections and to hold student office, both of them want to become the President, now tell me — subject matter jurisdiction or not?".
iii) Put forth another question — "There are 2 castes, living in village together. Question here is, one community has stopped the other community from accessing the well, the other community is claiming access, because there is going to be a ritual for the next week which only the one community will access. One suit filed — 2 issues — a) Right to access the well. b) Right to participate in the Ritual bathing. Which issue would be a Suit of Civil Nature? Hinted that the answer is in Explanation 1 and Explanation 2 of the relevant sections."
iv) Put forth another question — "One temple, 2 priests — both are questioning in suit filed, question here is if the idol belongs to them or not? — Suit of civil nature? Answer is no, because Idol is juristic person and cannot be owned. However, if it wasn't a juristic person, then it could be possessed and would be a suit of Civil nature.
v) Stated the Test for determining if a suit is of Civil nature, framed by Professor herself — 3 things to do — a) Identify every right in question in the suit, as legal and non-legal, by asking the question, would any existing statute be able to execute that right?, if yes, then legal right. b) Which Right is dominant?, should be the question — also look at the relief claimed. c) If their legal right that is dominant in this suit, is concerning Civil law.
vi) Also stated for above — v) Relief does not decide the nature of the suit.
vii) Put forth another question — "There are 2 instagram influencers — one of their handle is @bollywood and the other's is @bollywood. First one made her handle on 1 April 2020, and the other made her handle on 12 June 2022. The first one is claiming the right to her handle by making the other one give up hers. Now the question is — the first one wants the Right to the Insta handle, would this suit be a suit of Civil nature — the Answer can be given if the Test is applied."
viii) Put forth another question — "There are 2 astrologers, A and B — A filed a suit seeking declaration that every prediction of B is misleading and fake, would this be a suit of Civil nature? Professor that the central question is whether a Right exists or not. These are all procedural questions, not substantive, however, the substantive law must be known to apply the Test correctly."
ix) Stated case which I did not fully hear the name of — **Abdul v. —** The SC said that every favour should be made for the civil court which has jurisdiction, unless there is an express bar or an implied bar.
x) Began with Foreign jurisdiction — Sec. 2(5), (6), 13, 14, 44A of CPC and Sec. 86 of Evidence. (All needs to be read together.)
xi) Stated the criteria for the above, according to the sections enumerated.
xii) Stated about the judgement being conclusive with respect to the above concept, and Section 14 of CPC and Section of 86 of Evidence.
xiii) Stated the grounds for inconclusiveness of the foreign judgement with respect to the sections enumerated, whichever is being applicable, — a) The Court which passed the judgement, was not of Competent jurisdiction. b) The Court's judgement does not provide a judgement with respect to the Merits of the case. c) The 3 principles, one of them being Right to be heard, and other two, was not applied. d) I did not hear this one, and e), however they are all derived from the Sections she enumerated.
xiv) She stated that the Portion from Foreign jurisdiction won't come in the test of 15/9/26, only till ix) of today's class will come, alongside the previous classes.

DATE — 16/9/26

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i) Began by showing the graded test question paper. (Will upload once requested.)

ii) Stated that — these types of questions would come in the mid sem exams.

iii) Began with Order I.

iv) Stated that Section 26 is to be read with Order IV.

v) Stated — “Plaint is a document or a statement of the plaintiff submitted to the Court, consisting of the Cause of Action and facts in his favour. The filing of this institutes the suit.”

vi) Stated that above mentioned iv) is important.

vii) Stated that Order I talks about Parties to the suit.

viii) Stated that — Joinder of defendant or Co defendant, is where a common Cause of Action exists against more than one defendant, in the same transaction, thereby there should be a common question of law or fact as well, for those defendants.

ix) Began with Necessary parties and Proper parties — extremely important, questions definitely come on these.

x) Stated that — “Necessary parties are any parties whose presence is absolutely required in order to determine the suit, one whose presence is indispensable. Additionally, if the necessary parties are not joined in the suit, the suit is liable to be dismissed.”

xi) Stated that — “Proper parties are any parties in whose absence an effective order, i.e., an executable order, can be passed but their presence is necessary for complete and final decision on the question — *United Provinces v. Atika Begum*.”

xii) Put forth question — “A has filed a suit against the employer, that people who belonged lower than their in the seniority list has been promoted before him. He only filed the suit against the employer seeking to declare that wrongful promotion had happened — would the people who belonged lower be necessary parties or proper parties or neither of the two? Stated that the object must be understood before choosing the correct answer.”

DATE — 17/9/26

i) Stated that viva would be 10 marks, and AI enabled assignment would be 10 marks — also that the presentation will include the ai enabled assignment now, therefore technically the presentation then becomes of 50 marks — 40 marks being the presentation itself and 10 marks being the prompt being judged. Therefore, the Presentation and A.I. enabled assignment becomes amalgamated.

ii) Continued with Failure of justice or prejudice to either party, in the context of Order I.

iii) Began with Order I Rule 9 — Consequence of mis-joinder and non-joinder — No mis joinder or non joinder is going to affect the validity of the judgment itself. It is going to be a technical failure. Unless, it is a case of non-joinder of Necessary parties — why? — because of the definition of necessary properties.

iv) Began with Order I Rule 10 — stated to be very important, going through all of the sub rules thoroughly.

v) Stated that to avoid a burden of litigation, the Legislature has allowed for the sub rule 4 and sub rule 5.

vi) Stated that Rule 10 sub rule 2 is very important.

vii) Stated that the Test for Necessary Party and Proper Party, are their definitions itself, as stated in the class of 16/9/26.

viii) Stated to be a very important case — *Mumbai International Airport v. Rejency Convention Centre* — MIAL's interest was a contingent, future commercial expectation, there was no “present right”, that is why they were neither Necessary parties, nor Proper parties.

ix) Stated to be another important case — *Ramesh Hirachand v. Municipal Corporation of Greater Bombay* — stated that another Test is — The test is not whether presence is necessary for correct determination, but whether order or decree would affect present, existing rights or interests.

x) Also stated that merely because a future litigation could be avoided, is not a ground to add any party.

DATE — 18/9/26

i) Stated that for Mid Sem exams — Till Order VII will come, since till that would be able to be covered, in the class, also Section 22 to Section 25 is also there in the syllabus.

ii) *Razia Begum v. Sahebzadi Anwar Begum* — you should have a direct, present interest, and not an incidental, commercial interest, so that adding as a proper party can be done. The interest should be in the subject matter of the suit.

iii) Stated, with reference to above ii) that — No party can be added, who proposes a new Cause of Action.

iv) Began with Order I Rule 8.

v) Stated that for above iv) — the “interest must be the same, not necessarily the exact cause.”; also stated that “notice must be sent to everyone” — *T.N. Housing Board v. T.N. Ganapathy*.

vi) Going through all of the sub rules of Rule 8 of Order I, thoroughly, and putting forth examples to the class with the object of testing whether we can tell the correct answer.

DATE — 21/9/26

i) Began with Order II.

ii) Going through Rule 1 and Rule 2 thoroughly.

iii) Stated to be a landmark case — *Gurbaksh Singh v. Bhoora Lal (1964)* — The person who seeks to use Order II Rule 2 will have to present, the plaint presented in the first suit and the decision of the first suit.

iv) Stated that the distinction between Relief and Claim must be understood.

v) Put forth question — “First suit — X v. Y — breach of lease agreement; Second suit — X v. Y — Recovery of unpaid maintenance amount. Whether Order II Rule 2 will apply or not?”

vi) Stated that — “Whether facts necessary to prove a right or claim, is founded on a Cause of Action, which was the foundation of the former suit — *Keval Singh v. Lajwati*.”

vii) Put forth question — “Aditi wants to sell an immovable property to navan, navan gave 5 crore, and the entire sale and possession of this property was to be raised by 30 June, before such time, after terminated the agreement. After termination, she wants to sell to chanakya. Navan said that termination is invalid, I am willing to pay the rest of the amount, and Aditi terminated unilaterally. Suit filed by navan, suit filed for declaration that the termination was invalid, and injunction to prevent Aditi from selling the property to chanakya. Aditi's defence is that Navan did not show readiness and that is why she is terminating the contract. Aditi has a letter, which has a sign of navan, letter stating that no transaction will be enforceable unless some government clearance comes first. Now, Court said that — agreement is binding, navan was ready and willing, and termination was invalid. Second suit filed by Navan — specific performance of the contract claimed. Would Order II Rule 2 apply? — Answer: It would apply with respect to the relief.”

viii) Stated that — Multi-failure of suit is when misjoinder of plaintiffs, and misjoinder of defendants, both are happening.

ix) Stated that in Orders, Order I, II, IV, VI, VII is coming in the exam.

DATE — 22/9/26

i) Began by stating that the documents of the Group presentation needs to be submitted by 5th October, and the presentation will be taken by Professor on 12th October.

ii) Began with Order VI.

iii) Stated the definition of pleadings — “Pleadings are plaint and written statement; it is the statement of either party that relates to the claim that that party presents to the Court. But, rejoinders are also considered as pleadings.

iv) Also stated that the Order VIII Rule 9 is important.

v) Stated that Pleadings — a) should only consist of Material facts b) should not consist of relevant facts but only facts probanda c) should not consist of evidence d) should also not contain the law unless Rules provide for it specifically, for example, rights of easement.

vi) Stated that — to prove a case, you have to prove the facts in issue, that is your facts probanda; relevant facts are those facts which help prove the facts in issue.

vii) Stated that Material facts — “Facts which have direct association with the determination of the suit. These facts are so essential that if the proving of these facts are done, then the suit would be proved.”

viii) Stated that Rule 4 of Order VI also has to be read.

ix) Stated that Rule 7 of Order VI must be read since it is important.

x) Stated to remember: “Procedure is the hand maid of justice. All the rules are to be considered subject to the substantive rights.”

xi) Stated to remember Rule 13 as it is important as well.

xii) Stated that Rule 14 to Rule 17 are extremely important.

xiii) Stated that — “Unless verification of plaint is done, suit cannot be considered to be instituted.”

xiv) Stated that Rule 16 is also important.

xv) Began with Rule 17 very carefully, going through it thoroughly.

xvi) Stated that the proviso to Rule 17 — specifically pointing out the “due diligence” condition.

xvii) Stated to read Rule 17 with Rule 7.

DATE — 24/9/26

i) Continued with Rule 14A of Order VI.

ii) Stated that only one thing is important for the above i) — If the registered addresses in the plaint, the suit will be stayed; if registered address is wrong in the written statement, the defence will be struck out. Also stated for defence being struck out, that the plaintiff's defence can be opposed, while the independent defence cannot be taken that was there in the written statement with the wrong registered address.

iii) Stated also for above i) that — defence struck out is simply that the independent defence cannot be put forth, for example — defence's witnesses; while of course the plaintiff's arguments can be opposed.

iv) Stated that Professor's coming back to the lecture on the most important rule — Rule 17 of Order VI — Amendment of pleadings.

v) Stated that this is the real purpose to Rule 17 — “To determine the real matters in controversy.”

vi) Stated that matter in issue and matter in controversy is different.

vii) Stated that “any fact alleged by one party and admitted or defined by one party — that is the extend of rule 17.”

viii) Put forth landmark judgement — said that she's going to share the judgement with us — *Salem Advocates' Case* — “The entire rule 17 is to be liberally interpreted.

Narrow interpretation is not to be done.”

ix) Stated the meaning of “Real Matter in Controversy”.

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ix) Stated the meaning of 'Real matter in controversy' —
x) Stated that for judging whether the Amendment to the pleading sought to be done would be allowed or not — a) Check what the amendment is seeking to amend. b) Check if a separate Cause of Action is sought to be added.
xi) Stated — Any amendment cannot disturb or infringe any person's pre-existing right.
xii) Stated — When Amendment will be allowed — a) If it causes no injustice to the other side b) No multiplicity of proceedings.
xiii) Stated — When Amendment will not be allowed — a) If the amendment is sought not in good faith. b) If the amendment seeks to take away legally acquired existing right of another person. Stated — **Andhra Bank v. ABL Amro Bank (2007) SC** — If opposite party or any other third party has altered his position to such an extent that now his position cannot be reversed or money compensation cannot be awarded, then amendment to the pleading will not be allowed.
xiv) Also stated that — "Cause of Action cannot be changed by way of amendment."
xv) Also stated that — "Cause of Action can be added — There should some nexus between the 2 Cause of Actions, i.e. the before and the after."
xvi) Stated — **Sampal Kumar v. Agya** — "While deciding whether amendment would be allowed, the merits cannot be judged."
xvii) One of the things to see — "If this amendment is necessary to judge WHAT the real matter in controversy, then it will be allowed. Won't be allowed if this amendment is necessary to judge HOW the real matter in controversy will be determined."

DATE — 25/9/26
i) Stated that for the Group presentation, for the problem given, not to make substantial arguments on substantive law, but focusing on procedural law. Basic substantive law arguments that cannot be not used for the procedural law, may be used for the arguments.
ii) Stated that Order VI Rule 18 is also important.
iii) **LIC v. Sanjeev Builders (2022)** — All amendments are allowed to determine the matters in controversy for proper adjudication of the suit, provided that it does not cause prejudice to any party.
iv) Stated that Amendment cannot be sought for a time barred claim.
v) Putting forth questions, that are a combination of multiple Orders and their Rules that Professor has covered, thereby we have to answer on multiple points keeping in mind all that is studied.
vi) **Reva Jitu Builders v. Narayana Swami (2009) SC** — All principles stated for the relevant Rule, were all laid down for the first time in this judgement.
vii) Also stated — "For deciding questions on whether an Amendment will be allowed, you do not have to look at the relief that has been changed. That does not matter."
viii) Putting lots of questions on whether Amendment to the pleading will be allowed or not.
ix) Began with **Order VII**.
x) Stated that whatever Professor has taught, those will be the syllabus.
xi) Stated — "Plaint consists of the statements by the plaintiff that consists of facts that support the claim that the Cause of action exists in the Plaintiff's favour."
xii) Stated that the Rules in Order VII, need to be read from the Bare Act, alongside whatever Professor is stating in class.
xiii) Stated that **Cause of Action is the most basic element that need be there in the plaintiff**.
xiv) Stated that Rule 6 of Order VII, is important.
xv) Stated that the most important part of Order VII — **Return of plaintiff and Rejection of plaintiff**.
xvi) Stated suddenly, that **rejection of plaintiff is also a deemed decree**.

DATE — 28/9/26
i) Began with — **Amarchand v. Union of India** — stating the facts of the case, and then putting question to the class, so as to check if we can determine the correct answer or not — plaintiff in proper court after return is not continuation of suit.
ii) Stated — Continuation of a suit, can only be if a suit has been instituted.
iii) Stage — The order of return of plaintiff can be passed by the Court at any stage.
iv) Stated that Rule 10A and Rule 10B must be read.
v) Stated that only if there is an error in jurisdiction, can a plaintiff be returned.
vi) Began with **Rejection of Plaintiff** — stated to be a very important provision.
vii) Order VII Rule 11 for above vii)
viii) Stated that **Written Statement of the defendant is not to be considered for determining Rejection of Plaintiff**.
ix) Stated — **Charitable Trust and Educational Charitable Society v. Ponniannan Educational Trust** — A cause of action must include some act done by the defendant since in the absence of such an act, no Cause of Action can possibly accrue.
x) Going through the entire Rule 11 thoroughly, i.e. all of the grounds.
xi) Stated — **Keshav Sood v. Kirti Sood (2023)** — Only averments made in the plaintiff are to be looked into; defence statements are irrelevant at the stage of deciding rejection of plaintiff.
xii) Also, the merits cannot be looked into, neither can the evidence be considered, for determining rejection of plaintiff.
xiii) Also went through Order VII Rule 9.
xiv) Putting questions to the class on **Rejection of Plaintiff**.
xv) Stated — **G. Nagaraj v. B.P. Mruthunjayanna (2023)** — Cause of Action has to be found from the plaintiff itself; some inconsistent pleadings are not enough to reject the plaintiff. If there is disclosure of at least some cause of action, the plaintiff must be admitted. The Court cannot decide validity, merits, truth of the claim when determining rejection of plaintiff.
xvi) Stated again, that whatever Professor is teaching will come in the mid sem exam. If previously it has been mentioned that only till Order VII is coming, that is not overriding the statement that whatever Professor is teaching will come in the mid sem exam.
xvii) Revision of Order VII Rule 11.
xviii) Return of plaintiff is not Transfer of suit, because the plaintiff was never admitted in the first place.
xix) Stated that, for the context of Order VII Rule 11, Res judicata, under the grounds stated, would not be a bar — simply because for Rule 11, there needs to be a prima facie determination from the plaintiff itself. For res judicata, there need not only be the plaintiff, but also the decision of the prior Court and the past pleadings, therefore since it is not limited to the plaintiff, therefore Res judicata would not be a bar under Rule 11.
xx) Putting questions — a) Suit is A v. B. A's plaintiff says, I dislike the way B is using the property, which may reduce the value of my property. Stated to be grounds for rejection of plaintiff, because Cause of Action is not present. b) Lack of territorial jurisdiction is not a ground for Rejection of plaintiff under Order VII Rule 11. c) A v. B. Suit is for specific performance of an agreement to sell land. Agreement was made on February 2020. A had agreed to pay 20 lakhs. B had agreed to execute the sale deed within 6 months. Suit has been filed 1st June 2020 that B has shown reasons which can be assumed that B has failed to perform his part of the agreement. Will there be Rejection of Plaintiff? — Answer is no, because Cause of Action had not arisen, as 6 months had not yet passed.
xxi) Stated — If there is even a part Cause of Action, plaintiff would not be rejected.
xxii) Stated — She is looking for arguments, provisions, case laws — those are the only thing she is looking for, in such way which would surpass the class. (I judge her as rigid in her teaching but without knowing that about herself. She can be subtly influenced by putting arguments and case laws which she herself has stated, and I have noticed that she would be impressed with depth in the problem that she herself has framed. Therefore, if the problem is dived into, such that she can be impressed with the amount of effort that has been put in, running parallel to the strategy of the subject chat, that would increase the probability of attainment of the highest marks.)